

CYB 260 Module Four Worksheet

Complete the table below by filling in the three columns for each law. Replace the bracketed text with the relevant information.

Law	Briefly describe the law.	Whose rights are covered by the law?	Who in an organization is responsible for ensuring compliance with the law?
Census Confidentiality Act	A set of confidentiality protections for all data collected by the U.S. Census Bureau. Personal information is strictly confidential and cannot be used against individuals by any agency or court. Violations are federal crimes, punishable by up to \$250,000 in fines and/or five years in prison.	This law protects the rights of Census respondents.	The Chief Privacy Officer is primarily responsible, supported by legal, compliance, and IT security staff, including the CISO and system administrators.
Freedom of Information Act (1966)	FOIA gives the public the right to access records from any federal agency, promoting transparent and accessible government information. It applies only to federal executive branch agencies, not Congress, the courts, or state and local governments. Agencies are required to respond to requests within 20 working days.	The law supports the public's statutory right to access government records and promotes government transparency, rather than protecting individual privacy rights.	A dedicated FOIA Officer or FOIA Office is typically responsible, though in smaller agencies, duties may fall under the General Counsel or Privacy Officer.

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Wiretap Act (1968, Amended)	Makes it a federal crime to intentionally intercept, use, or disclose any wire or oral communication without consent or a valid warrant. Applies only to real-time interceptions. Violations can lead to criminal charges, civil lawsuits, and suppression of evidence in court.	The rights of anyone who uses wire or oral communication methods inside the United States, regardless of citizenship, are protected by this law.	Compliance is primarily the responsibility of law enforcement and their legal teams when requesting wiretaps.
Mail Privacy Statute (1971)	A set of federal laws under Title 18 §§ 1702–1708 that protect the confidentiality of USPS mail. From deposit to delivery, it is illegal to open, take, delay, or destroy mail not addressed to you without legal authority. Violations incur criminal penalties, including fines, and imprisonment.	This law protects the privacy rights of anyone who utilizes the services of the USPS.”	Compliance primarily falls on law enforcement and USPS employees, but all individuals must follow the law by not tampering with mail not addressed to them and by returning misdelivered mail to the postal carrier.

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Privacy Act (1974)	Regulates how federal agencies handle personal data. Grants U.S. citizens and lawful residents the right to know, access, correct, and restrict disclosure of records. Limits unnecessary data collection and requires notice when creating or updating databases that store PII.	The rights of U.S. citizens and lawful permanent residents are protected by this law.	Typically the Chief Privacy Officer or Compliance Officer is responsible for ensuring the agency follows the Privacy Act's requirements.
Cable Communications Policy Act (1984)	Establishes a national framework for regulating cable TV. Sets rules for local franchising, rate control, and service standards. Requires providers to protect subscriber privacy, notify users of data use, and allow data access. Supports local programming and limits monopoly control through leased access and content protections.	The rights of cable subscribers are protected by this law.	Compliance spans a broad range of executive leadership including: • CISO for data protection • Compliance or Legal for regulatory oversight • COO for operational requirements • CMO for marketing-related requirements

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Electronic Communications Privacy Act (1986)	Updated the Wiretap Act to include electronic communications. Created the Stored Communications Act to protect the privacy of stored data like emails, texts, and voicemails. Also established rules for Pen Register and Trap and Trace Devices, which collect metadata from communications without capturing content.	The rights of anyone who uses electronic communication methods inside the United States, regardless of citizenship, are protected by this law.	Compliance is primarily the responsibility of law enforcement and their legal teams when requesting access. Service providers must also follow the law when disclosing stored communications or metadata.
Driver's Privacy Protection Act (1994)	Restricts the disclosure of PII collected by state DMVs. Prohibits states from disclosing this data without the individual's consent, with a few tightly controlled exceptions. Entities that misuse DMV data can face civil penalties, criminal charges, and private lawsuits from affected individuals.	Protects the privacy of any individual whose personal information is held by state DMVs.	Responsibility typically falls to a state DMV's privacy or compliance officer, where available. In agencies without those roles, the CISO or IT leadership is generally responsible for ensuring compliance.

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E-Government Act (2002)	Created the Office of Electronic Government within OMB to oversee federal IT strategy and digital service delivery. Tasks the Federal CIO with managing infrastructure, standards, and accessibility. Requires agencies to use IT to improve public services. Introduced the original FISMA for cybersecurity programs. Also created CIPSEA to ensure data collected for statistical purposes isn't used for unrelated enforcement or decision-making without consent.	Protects the privacy of any individual whose PII is collected by federal agencies.	Responsibility typically falls to the Chief Privacy Officer or Compliance Officer. In agencies without those roles, the CISO or IT leadership is generally responsible for ensuring compliance.
Health Information Technology for Economic and Clinical Health (HITECH) Act	Promotes electronic health record adoption through incentive programs for providers to switch from paper to digital. Penalties for noncompliance began in 2015. Introduces breach notification requirements and expands patient rights to access and control their digital health records.	Protects the privacy rights of patients while also improving their access to electronic health records and ensuring better continuity of care through modernization of medical record systems.	In private practice, individual doctors are directly responsible for compliance. In larger clinics or hospitals, responsibility typically falls to the CISO or Chief Privacy Officer.